

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADVOCATE N.N.P.
SARDESAI AT PANAJI, GOA**

In the matter of:

VIKRAM SHAH

...Claimant

V/s.

RIVA TRINDADE & 3 Ors.

...Respondents

**APPLICATION FOR AMENDMENT
OF STATEMENT OF DEFENSE.**

MAY IT PLEASE THIS HON'BLE TRIBUNAL:

The Respondent Nos. 1, 2 and 3 state and submit as under:

1. Vide Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024, this Arbitral Tribunal was appointed to decide the dispute between the parties arising out of the Agreement styled as the Articles of Association, purportedly entered into between Mr. Pascoal Trindade, the Claimant, and Respondent No. 4 herein.
2. Pursuant to the Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024 and

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to be
replied

upon the constitution of the present Arbitral Tribunal, the Claimant herein filed his Statement of Claim seeking reliefs more particularly stated at the prayer clause therein.

3. The Respondents have filed their Statement of Defense in the present arbitral proceedings and have been contesting the claims raised by the Claimant.
4. Against such backdrop, the present Application is being filed seeking leave of this Hon'ble Tribunal to amend the Statement of Defense by incorporating certain additional pleadings which have become necessary for the proper, complete, and effective adjudication of the disputes arising in the present proceedings.
5. The Respondents submit that the proposed amendments are primarily intended to elaborate, clarify, and particularize the existing defences concerning the legal effect of the Articles of Association, the nature and extent of the rights asserted by the Claimant, the status and rights of Respondent No. 2 as a moiety holder, the effect of the Joint Venture Agreement

dated 25.04.2014, and the maintainability of the claims raised in the present proceedings.

6. The Respondents further submit that certain facts and documents relevant to the adjudication of the present dispute have come to their knowledge and possession subsequent to the filing of the Statement of Defense. In particular, the Respondents have recently obtained banking records and statements which disclose material transactions having a direct bearing on the claims raised by the Claimant and the reliefs sought in the present proceedings. The Respondents seek to place the said facts on record by way of the proposed amendment.
7. The Respondents accordingly seek leave to amend the Statement of Defense in terms of the draft amendment annexed hereto and marked as **ANNEXURE A**.
8. The Respondents submit that the proposed amendments are necessary for determining the real questions in controversy between the parties and for enabling this Hon'ble Tribunal

to adjudicate the disputes in a comprehensive and effective manner.

9. The proposed amendments neither introduce a new and inconsistent case nor seek to withdraw any admission previously made. The same are bona fide, necessary for the purposes of adjudication, and are sought at the earliest available opportunity after the relevant facts and materials came to the knowledge of the Respondents.
10. It is a settled position that arbitral tribunals are empowered to permit amendment of pleadings to ensure complete and effective adjudication of disputes and to avoid multiplicity of proceedings.
11. No prejudice whatsoever shall be caused to the Claimant if the proposed amendments are permitted. In the event the present Application is allowed, the Claimant shall have full opportunity to file such additional pleadings and material as may be considered necessary in response thereto.

12. On the contrary, refusal of the proposed amendment would result in material facts and issues having a direct bearing on the adjudication of the present dispute being excluded from consideration, thereby causing serious prejudice to the Respondents.

13. The balance of convenience is overwhelmingly in favour of permitting the amendment so that the disputes between the parties may be adjudicated on the basis of the complete factual and legal position.

14. That this Hon'ble Tribunal has the necessary and requisite jurisdiction to entertain and adjudicate the present application. The facts sought to be incorporated are integral to the subject-matter of the dispute and as such, fall well within the scope of its jurisdiction and authority

Therefore, in the light of the above, the Respondents most respectfully pray that this Hon'ble Tribunal be pleased to allow the present application and permit the Respondents to amend their

Statement of Defense in terms of the draft amendment annexed
hereto and marked as **ANNEXURE A**.

Date: 12.06.2026

Place: Panaji, Goa

Respondent No. 1

Respondent No. 2

Respondent No. 3

DRAFT AMENDMENT

After paragraph 6, add the following paragraphs:

- 6A. Respondent No. 2 has been brought on record solely in her capacity as one of the legal heirs of Late Pascoal Trindade and not in her individual capacity. Undeniably, Respondent No. 2 and Late Pascoal Trindade were married under the regime of communion of assets. Consequently, during the lifetime of Late Pascoal Trindade, Respondent No. 2 was a moiety holder and co-owner of the subject property in her own independent right. The rights, title, interest, entitlement and possession of Respondent No. 2 in respect of the subject property were neither the subject matter of, nor intended to be governed by, the Articles of Association relied upon by the Claimants. The said Articles of Association neither contemplated nor dealt with the independent proprietary rights of Respondent No. 2 in the subject property.
- 6B. The existence of the regime of communion of assets between Respondent No. 2 and Late Pascoal Trindade is undeniable. It is further admitted that Respondent No. 2 was never a

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party to the Articles of Association relied upon by the Claimants.

6C. The Respondent states that her independent rights, title, interest, entitlement, and possession as a moiety holder were never contributed to, vested in, or made subject to the Articles of Association. Consequently, and without prejudice to the contention that Respondent No. 2 has been impleaded only in her capacity as a legal representative of Late Pascoal Trindade, her independent proprietary rights as a moiety holder do not fall for adjudication in the present proceedings.

6D. In any event, even assuming that Respondent No. 2 is a veritable party to the present arbitral proceedings by virtue of her status as a legal representative of Late Pascoal Trindade, the scope of such representation can extend only to the rights, obligations, and liabilities of Late Pascoal Trindade. The independent rights and entitlements vested in Respondent No. 2 as a moiety holder in her own right cannot

be adjudicated upon, curtailed, extinguished, or otherwise affected in the present proceedings as sought to be done by the Claimants.

After paragraph 17, add the following paragraph:

17A. Without prejudice to the aforesaid, the Articles of Association are neither registered nor stamped in accordance with law. In any event, the provisions contained therein, particularly those pertaining to entitlement, vesting, cessation, and devolution of rights, are neither binding upon nor enforceable against Respondent No. 2. The same cannot otherwise defeat the proprietary rights and entitlements vested in Respondent No. 2 under the law governing communion of assets, which rights existed independently of and dehors the Articles of Association. Consequently, the said Articles of Association cannot, by themselves, create, extinguish, curtail, transfer, encumber, or otherwise affect the independent rights, title, interest, entitlement, and possession of Respondent No. 2 in respect of the subject property.

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After paragraph 43, add the following paragraphs:

43A. Recently, these Respondents have acquired records in the form of bank statements. The said statements reveal that the Claimant and Respondent No. 4 herein were refunded, returned and/or paid various amounts from the personal account of Late Pascoal Trindade. It is apparent from the said statements that the Claimant's entity, namely Pravar Trade Investment Pvt. Ltd., was paid an amount of Rs. 71,00,000/- on 03.05.2014, corresponding to the amount purportedly invested by the Claimant. The said statements further reveal that, apart from the aforesaid payment of Rs. 71,00,000/-, various amounts were remitted to Pravar Trade Investment Pvt. Ltd., aggregating to a total sum of Rs. 1,09,00,180/-. Similarly, an amount of Rs. 68,50,000/- was remitted to the account of Respondent No. 4 on 26.04.2014, corresponding to the amount purportedly invested by Respondent No. 4 herein. The statements further reveal that, including the aforesaid payment of Rs. 68,50,000/-, various amounts were remitted to Respondent No. 4, aggregating to a total sum of Rs. 1,06,50,116/-. The remittance of the said

amounts demonstrates that the entire purported advances and/or investments made by the Claimant and Respondent No. 4 herein were refunded to them and, consequently, the claims pertaining to entitlement over the subject property, partition and/or damages and losses raised in connection with the AOA cannot be sustained. The Claimant has not produced any material to demonstrate that the said amounts refunded / paid to the Claimant and/or Respondent No. 4 were reinvested and/or brought back into the AOA in any manner and/or they have made any other independent investments in the AOA and/or for the purpose of acquisition of the property. The contents of the balance sheet and the statement of income and profit-loss account relied by the Claimant are seriously disputed. It is obvious from the reading of the balance sheet and the accounts produced by the Claimant that the same are self-serving documents created / concocted and/or engineered after the invocation notice dated 28.02.2024.

43B. The Respondents submit that the Claimants herein have intentionally suppressed these facts from this Hon'ble Tribunal to obtain orders from this Tribunal and frustrate the rights of the Respondents herein. Claimant has systemically, consistently and with malafide refused to submit the statement of accounts, audited statements and/or any of the financial records and/or statement qua any of the business. In view of the remittance referred to above, it is evident the intent of the Claimant in suppressing such vital facts from the Respondents and/or this Hon'ble Tribunal was to obtain orders and usurp rights in the properties vested onto these Respondents

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43C. The Claimant has also suppressed the fact that he is the authorized representative of M/s. Loonkar and has represented the said company before the Court of the Civil Judge, Senior Division, at Panaji, in a suit filed by the Comunidade.

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43D. Significantly, the Claimant has categorically admitted that the subject properties are owned by Late Pascoal Trindade and Respondent No: 2 much contrary to the Statements made by him in the Statement of Claim. The Affidavit in Evidence was filed before the Court as on 20.04.2022. Interestingly, the said Affidavit in Evidence dated 20.04.2022, which was drafted at the instance of the Claimant with obvious the assistance of the lawyer categorically records that the subject properties are owned and exclusively possessed by the Respondent Nos. 1, 2 and 3. In the entire Affidavit-in-Evidence, the Claimant herein has neither claimed to be a co-owner of the property nor made any reference to M/s. PVM and/or even to his purported investment in the subject property. Obviously, the Claimant in the habit of adopting inconsistent and incongruous stands as per the nature of proceedings he faces, such conduct of the Claimant cannot be countenance in law and particularly disentitles him to any relief either in facts and circumstances of this case and/or in law. This conduct of the Claimant becomes relevant considering the scope and

ambit of the Order dated 13.10.2022 passed by the Civil Judge Senior Division at Panaji whereby the said Court, obviously after hearing the Claimant as the representative of Loonkar Developers Pvt. Ltd., has given findings qua existence, entitlements of M/s. PVM. It is more so relevant to note that the Legal Notice dated 29.10.2022, purportedly issued by Loonkar Developers Pvt. Ltd. is clearly engineered by the Claimant considering he is the authorized representative of Loonkar Developers Pvt. Ltd.

43E These Respondents state that none of the actions and/or omissions attributable to these Respondents has caused any real loss/damage to the Claimant and/or Respondent No. 4.

After paragraph 51, add the following paragraph:

51A. Deed of Sale dated 14.07.2014, executed subsequent to the purported Articles of Association, a portion of the larger property was conveyed by Respondent No. 2 and Late Pascoal Trindade in favour of Loonkar. Significantly, the said Deed of Sale contains no reference whatsoever either

qua purported efforts made by the Claimant and Respondent No: 4 in developing property and/or acquiring the same and/or the existence of the Articles of Association or to any alleged rights, title, interest, entitlement, or claim of the Claimants and/or Respondent No. 4 in the property conveyed thereunder. It is pertinent to note that Respondent No. 4 and his then advocate, Mr. Rao, were witnesses to the said Deed of Sale. The execution of the said Deed and the contents thereof were therefore well within the knowledge of the Claimants and Respondent No. 4. Despite such knowledge, neither the Claimants nor Respondent No. 4 asserted any proprietary interest in the property conveyed, nor did they insist upon being joined as confirming parties, consenting parties, co-vendors, or otherwise participating in the transaction.

51B. The aforesaid omission is demonstrative of the fact that the parties Claimant and/or the Respondent No: 4 herein no real role in developing the said properties and/or its acquisition. Consequently, any claim for partition, compensation,

declaration of entitlement, or any other relief premised upon an assertion of title or proprietary interest in the subject properties is devoid of merit and liable to be dismissed.

After paragraph 53, add the following paragraphs:

53A. The terms of the Articles of Association themselves make it abundantly clear that the same did not constitute a juristic entity capable of independently holding or acquiring rights, title, or interest in the immovable properties forming the subject matter of the present dispute. The case of the Claimants is that the subject properties ceased to vest in Late Pascoal Trindade and thereafter became vested in the Articles of Association and/or the arrangement contemplated thereunder. The purported divesting of title from Late Pascoal Trindade and the corresponding vesting of title in favour of the Articles of Association, or any body purportedly created thereunder, is unsupported by any registered conveyance, deed of transfer, instrument of assignment, or other legally recognized mode of transfer of immovable property. Consequently, the Articles of

Association could not and did not operate to transfer, convey, assign, extinguish, or otherwise alter the title vested in Late Pascoal Trindade and/or Respondent No. 2.

53B. It is an established position that the Articles of Association relied upon by the Claimants neither constituted a company incorporated under law nor a partnership firm recognized by any statutory framework. The arrangement contemplated thereunder did not possess any independent juristic personality or legal character capable of holding, acquiring, or enforcing proprietary rights in its own name.

53C. In the absence of any recognized legal status or juristic character, the Articles of Association could not, by themselves, become the repository of rights, title, or interest in the subject properties. Consequently, any claim found upon the premise that proprietary rights including rights qua compensation, damages or loss, or that such rights are presently sought to be enforced solely are legally untenable and unsustainable.

After paragraph 54, add the following paragraphs:

54A. The Respondents state that the Joint Venture Agreement dated 25.04.2014 is of no legal consequence insofar as the claims and reliefs sought against Respondent No. 2 are concerned. Undeniably, Respondent No. 2 was not signatory to the said Joint Venture Agreement. The said agreement appears to have been executed by Late Pascoal Trindade purportedly acting under the authority of a Power of Attorney. However, the said Power of Attorney has neither been annexed to the Joint Venture Agreement nor placed on record in the present proceedings. In absence of such production of power of attorney on record the said Joint Venture Agreement cannot be relied upon and/or shall not have any legal effect qua entitlements of the Respondents. In fact, no record has been produced evidencing the execution and/or registration of such Power of Attorney as contemplated therein.

54B. Without prejudice to the aforesaid, the present arbitral proceedings are not founded upon or arising out of the Joint

Venture Agreement dated 25.04.2014. Consequently, the question of Respondent No. 2 seeking any independent declaration or relief in relation to the validity thereof does not arise in the present proceedings. Even otherwise, the JVA in no manner does not and cannot operate to divest, extinguish, transfer, encumber, or otherwise affect the proprietary rights, title, interest, entitlement, and moiety rights of Respondent No. 2 in the subject property.

After paragraph 83, add the following paragraphs:

83A. In essence, the Claimants seeks a declaration and recognition of proprietary rights in the subject properties de hors the registered title documents and without any legally valid instrument evidencing the transfer or vesting of such rights in their favour. The reliefs sought by the Claimants necessarily require an adjudication upon questions of title and ownership contrary to and inconsistent with the registered instruments governing the subject properties, which have remained operative for decades. Consequently, in the absence of any legally recognized or crystallized

rights in favour of the Claimants, and particularly in the background of their attempt to assert and enforce alleged rights of ownership, vesting, title, and entitlement contrary to and in derogation of the registered instruments governing the subject properties, the claims raised in the present proceedings are wholly misconceived and untenable and, as such, the claims raised by them are liable to be rejected.

83B. The averments in the Statement of Claim make it evident that the present arbitral proceedings were initiated owing to the circumstances in relation to M/s. Kuval Projects Private Ltd., Pravar Trade Investment Private Ltd., M/s. Sumer Builders Private Ltd., and the pending proceedings against the Comunidade of Bambolim, as the determination of the claims shall include a decision on the rights, title, and interest of the parties over the subject properties. Apart from the parties mentioned above, the said Award (if any), would have the effect of eviscerating the rights and claims of other third parties, including financial institutions (if any), with retrospective effect, thereby virtually nullifying, partially or

totally, all claims and rights created on the basis of the said Deed of Sale. The consequences of a declaration of such a nature in an intra-party arbitration have the potential to assume drastic proportions and permit the misuse of an Award of an Arbitrator in a given case for collateral purposes, and would constitute a complete violation of the fundamental policy of Indian law on arbitration.

AFFIDAVIT

I, **MR. RIVA TRINDADE**, son of Late Mr. Pascoal Trindade, major in age, resident of 494, Dona Paula, Jetty, Panaji, North Goa, Goa, 403001, the Respondent No. 1 herein, for myself and on behalf of Respondent Nos. 2 and 3 herein, do hereby on solemn affirmation state and submit as follows:

1. I say that I have filed the above application for amendment of Statement of Defense before this Hon'ble Tribunal.
2. I say that the contents of the above application at paragraph nos. 1pt, 2pt, 3, 4pt, 5pt, 6, 7, 8pt, 9pt, 10pt, 11pt, 12pt, 13pt and 14pt and at paragraph nos. 6Apt, 6B, 6Cpt, 6Dpt, 17Apt, 43Apt, 43Bpt, 43Cpt, 43Dpt, 43Ept, 51A, 51Bpt, 53Apt, 53Bpt, 53Cpt, 54Apt, 54Bpt, 83Apt and 83Bpt of the draft amendment above are true and correct to my personal knowledge and belief and/or based on information derived from the records and/or inferences.
3. I say that the contents of the above application at paragraph nos. 1pt, 2pt, 4pt, 5pt, 8pt, 9pt, 10pt, 11pt, 12pt, 13pt and

14pt and at paragraph nos. 6Apt, 6Cpt, 6Dpt, 17Apt, 43Apt, 43Bpt, 43Cpt, 43Dpt, 43Ept, 51Bpt, 53Apt, 53Bpt, 53Cpt, 54Apt, 54Bpt, 83Apt and 83Bpt of the draft amendment above are in the nature of legal submissions which I believe to be true and correct.

4. I say that the contents of the present Affidavit at paragraph nos. 1, 2 and 3 above are true and correct to my personal knowledge and belief.

Solemnly affirmed at Panaji, Goa,

On this 12th day of June, 2026.

DEPONENT